BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY STATE OF OREGON

In the Matter of Administrative Policies and Procedures for Josephine County for the Purpose of Conducting Business on a Daily Basis: Administrative Policy F-01; *County Communication*	)))))	ORDER No. 2026-055

WHEREAS, the Board of County Commissioners previously adopted by Order No. 2024-078; *In the Matter of Administrative Policies and Procedures for Josephine County for the Purpose of Conducting Business on a Daily Basis; Administrative Policy Manual Repeal and Adoption*; and

WHEREAS, per section A-01(B)(1) of the Josephine County Administrative Policy Manual, the Board reserves the right to adopt, amend or repeal any County policy at any time; and

WHEREAS, the Board of Commissioners deems it necessary to revise policy F-01; *County Communication, Section H; Social Media* and has reviewed and approved the proposed policy; now, therefore

IT IS HEREBY ORDERED that the Josephine County Board of Commissioners approves and adopts the revised version of Policy F-01 to the Josephine County Administrative Policy, as represented in Exhibit 1, which is attached hereto and incorporated herein.

Policy Number	Policy Name (Previous)	Policy Name (New)	Date Adopted/Last Revised
F-01	County Communications	County Communications	October 7, 2026 Effective October 7, 2026

IT IS FURTHER ORDERED that said revised policy be incorporated into the Josephine County Administrative Policy Manual and be distributed to all County Elected Officials, and to all county offices, programs and divisions.

DONE and DATED this ___ day of October, 2026.

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

_____
Ron Smith, Chair

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Colene Martin, Vice-Chair

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Gary Richardson, Commissioner

Article F: Information & Communication

F-01: County Communication

A. General Policy

The County will utilize reasonable methods to make relevant and current factual information and notices available to citizens and employees, such as through the website, bulletin boards, listservs, signage, and social media.

B. Responsible Authority

1. The Department Head, or their designees, shall be the Responsible Authority for any physical premises designated to their department, for any webpage on the County website dedicated to their department, any listservs created for their department, and/or any authorized social media account established for their department subject to the approval of the Board of County Commissioners.
2. The Board of County Commissioners, or their designees, shall be the Responsible Authority for all other physical premises, County webpages, County listservs, and/or County social media accounts.
3. Union representatives shall be the Responsible Authority for any bulletin board allowed for union use.

C. General Principles

1. Notices on exterior bulletin boards or webpages are to be dated and remain on the bulletin board or webpage for a period of not more than two weeks unless the time period is extended by the Responsible Authority or otherwise required by law. Outdated webpage content shall be archived.
2. The Responsible Authority should review the materials on their bulletin boards and other signage regularly and remove any materials that are no longer current and/or relevant. Outdated or irrelevant social media and webpage content shall be archived.
3. Human Resources shall ensure that mandatory employment postings are posted and accessible. It is the responsibility of Department Heads to ensure that each worksite maintains bulletins with current employment postings as provided by Human Resources.
4. All items must be considered to be in good taste and free of any material that may be considered slanderous or derogatory towards the county. County communication resources may not be used to take a position on any political candidate, ballot measure, or other matter up for election.
5. Use of County communication resources is for County business only and shall not be used for personal gain or purpose by any employee.

D. Bulletin Boards

1. Exterior Bulletin Boards are maintained for the purpose of posting legal notices and County communication with the public. No one may post information on such bulletin boards without first obtaining approval from the Responsible Authority.
2. Internal Bulletin Boards are maintained for the purposes of communicating legally required information and/or sharing County wide and Department specific information. They may also be used to display departmental information, news, and items of interest, value, or help to employees

and the public.

3. Union Bulletin Boards must be allowed in any department and/or area where one or more employee member(s) of a collective bargaining unit work. Unions shall supply their own boards. The union shall be the Responsible Authority for materials posted on their bulletin boards.

4. New bulletin boards must meet ADA requirements and be attached to the wall by Facilities.

E. Webpages

1. The Information Technology Department shall be responsible for establishing and maintaining the County website.

2. County departments may have webpages on the County website, or may establish a separate website with approval of the Board of County Commissioners. All webpages shall follow the website style guide and applicable security measures.

3. Department Heads will work with IT to ensure that designated staff have administrative rights to the department webpage(s) and that staff has been trained on updating the webpage(s).

F. Listservs

Listservs may be used to distribute County information via email.

G. Advertising

1. Advertising includes, but is not limited to, signs, banners, newspaper advertisements, brochures,
web postings, and/or flyers.

2. The Board of County Commissioners shall approve all advertising on behalf of the County, except for the Fairgrounds and any department or program with advertising policy that has been approved by the Board of County Commissioners.

H. Social Media

1. **Purpose:** County departments may use social media Internet sites and technology to provide information and to interact with the public. “Social media” is broadly defined as Internet-based communications platforms that allow people to communicate, create communities, and/or share information and content. The County encourages the use of social media, where appropriate, to further the goals of the County and the missions of its departments; however, the County has an overriding interest in deciding what is “spoken” on behalf of the County. This policy establishes guidelines for the use of social media by County departments.

2. **General Policy:** Josephine County’s website (www.josephinecounty.gov) will serve as the County’s online home of information. County offices and departments may also maintain other websites as appropriate. Social media will be used to provide further promotion of Josephine County objectives on platforms that are widely used by

community members, making information and engagement more accessible and reaching a broader audience. County staff should provide links back to County websites on social media as practical and appropriate.

3. **Authorization and Approval:** Departments will work with the Public Information Officer to establish and maintain relevant social media accounts. The Public Information Officer will maintain top-level access to these accounts (usernames, passwords, admin-level privileges, etc.). Departments may seek ongoing authorization to manage content on their social media accounts, with either full or partial independence, which the Public Information Officer may provide via written agreement. Departmental management of social media accounts is still subject to compliance with the Josephine County Social Media Policy.

   Elected officials may choose to establish and maintain social media accounts for their respective offices. For such accounts, elected officials may choose to follow the Josephine County Social Media Policy for records retention and comments management, or they may choose to establish their own policies, in accordance with applicable law.

4. **Content:** County social media accounts will be used to promote messages and content that furthers Josephine County's objectives. Content will maintain a tone and level of professionalism appropriate to the messaging (e.g., posts about emergencies should be professional and serious, posts about community events may be lighthearted and fun, etc.). Any content to be posted that has been generated by a non-governmental entity (including citizens, businesses or a media outlet) shall be approved by the Public Information Officer or the appropriate Department or Office leader prior to posting.

5. **Site Maintenance:** Whenever possible and practical, content posted to County social media sites should contain links directing users back to the County's official website for in-depth information, forms, documents, or online services. Designated department staff approved by the Public Information Officer shall be responsible for the content and upkeep of social media sites their department may create. All postings are subject to approval by the Web & Public Information Coordinator or designee, unless otherwise specified. Only County employees will have administrative/ownership access to County social media accounts.

6. **Compliance and Public Records Law:** Use of County social media sites shall comply with all applicable policies, rules, and regulations of Josephine County. County social media sites are subject to state public records laws. Any content maintained in a social media format that is related to County business, including a list of subscribers and posted communication, is a public record. Content related to County business shall be maintained in an accessible format so that it can be produced in response to a public records request. Whenever possible, such sites shall clearly indicate that any content posted or submitted for posting is subject to public disclosure.

7. **Records Retention:** State records retention laws (ORS Chapter 166) apply to social media formats and content. The Public Information Officer shall set records policies for County social media accounts and maintain any necessary contracts or work to retain social media records, in compliance with state law.

8. **Restrictions:** County social media sites shall include a notice to site users and visitors that the following content will not be allowed on the site:

    a. Comments that are clearly or repeatedly not related to the particular social media thread;

    b. Profane and vulgar language or content;

    c. Content that personally attacks a person's or group's age, race, sex, national origin, family status, physical or mental ability, or religion;

    d. Sexually explicit content or links to sexually explicit content;

    e. Spam that can include solicitation, promoting particular services or products, or posting links to other websites;

    f. Conduct or encouragement of illegal activity;

    g. Information that compromises the safety or security of the public or public systems;

    h. Content that violates copyright, trademark, or intellectual property law;

    i. Content that harasses or antagonizes an individual;

    j. Content that reveals another person's private information.

    Any content removed based on these restrictions shall be retained, including the time and date of the posting and the identity of the poster (if available). Josephine County reserves the right to restrict and remove any content posted on County social media sites that is determined to be in violation of this policy or other applicable law, rule, or regulation.

9. The IT Director shall be responsible for making determinations on blocking social media accounts. Commenters and persons messaging Josephine County social media accounts shall not be blocked from Josephine County social media accounts except in cases when:

    a. The commenter displays a continued pattern of disregard for Josephine County's social media comment policy and/or terms of use.
    b. The commenter's behavior is so egregious that the IT Director concludes the commenter shows a severe risk of continuing behavior that violates Josephine County social media comment policy and/or terms of use.

10. **Confidentiality and Personal Use:** Confidentiality and Personal Use. County employees and elected officials are prohibited from disclosing any information on any social media sites that may be confidential or may otherwise compromise the County. Only County social media sites may be used by County employees and elected officials to conduct County business. County employees and elected officials are discouraged from using personal equipment or personal accounts to post information to County social media sites. County employees and elected officials shall not use personal equipment or personal accounts to post information regarding County business on other social media sites.

    Personal use of County equipment by County employees, elected officials, or others to access social media sites is prohibited.

BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY STATE OF OREGON

In the Matter of Administrative Policies and Procedures for Josephine County for the Purpose of Conducting Business on a Daily Basis: Administrative Policy F-06; *Public Records Requests*	)))))	ORDER No. 2026-056

WHEREAS, the Board of County Commissioners previously adopted by Order No. 2024-078; *In the Matter of Administrative Policies and Procedures for Josephine County for the Purpose of Conducting Business on a Daily Basis; Administrative Policy Manual Repeal and Adoption*; and

WHEREAS, per section A-01(B)(1) of the Josephine County Administrative Policy Manual, the Board reserves the right to adopt, amend or repeal any County policy at any time; and

WHEREAS, the Board of Commissioners deems it necessary to revise policy F-06; *Public Records Requests* and has reviewed and approved the proposed policy; now, therefore

IT IS HEREBY ORDERED that the Josephine County Board of Commissioners approves and adopts the revised version of Policy F-06 to the Josephine County Administrative Policy, as represented in Exhibit 1, which is attached hereto and incorporated herein.

Policy Number	Policy Name (Previous)	Policy Name (New)	Date Adopted/Last Revised
F-06	Public Records Requests	Public Records Requests	October 7, 2026 Effective October 7, 2026

IT IS FURTHER ORDERED that said revised policy be incorporated into the Josephine County Administrative Policy Manual and be distributed to all County Elected Officials, and to all county offices, programs and divisions.

DONE and DATED this ___ day of October, 2026.

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

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Ron Smith, Chair

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Colene Martin, Vice-Chair

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Gary Richardson, Commissioner

F-06: Public Records Requests

A. Purpose

To set forth the County procedures when members of the public request records pursuant to Oregon's Public Records Laws.

B. General Policy

Public records of the County shall be maintained and managed in a manner that protects the integrity of the records and does not hinder their lawful disclosure when requested. Public records shall be maintained from the time of creation to the time of final disposition in accordance with the public records archiving requirements of state law.

C. Definitions

"Custodian" refers to a public body mandated, directly or indirectly, to create, maintain, care for or control public records. The Board of County Commissioners is the custodian of all public records for Josephine County, except those where another elected official is the custodian.

"Public Record" has the meaning established in ORS 192.311.

D. Roles and Responsibilities

The Board of County Commissioners has designated the Josephine County Information Technology Department's Web and Public Information Coordinator as the Records Management Officer (RMO) to coordinate the County's Public Records Management Program in accordance with ORS 192.105 (2)(a).

1. All decisions by the RMO regarding public records for which the Board of County Commissioners is the custodian are considered decisions of the Board of County Commissioners. Decisions of the Board of County Commissioners are appealable to the Josephine County District Attorney in accordance with ORS 192.324(6), 192.407 - 192.415.
2. Decisions regarding public records for which an Elected Official is the custodian or are in the custody of any other person but for which an elected official has claimed the right to withhold disclosure are considered decisions of the Elected Official and are thereby appealable to Circuit Court in accordance with ORS 192.427. The RMO has no role in decisions made by an Elected Official.

E. Training

Public records training will be incorporated as part of regular employee training.

F. Procedures

The County shall abide by applicable state laws when acknowledging receipt of and processing requests for public records.

1. Information and Records Requests
    a. Informal Requests for Information
    When an informal request can be satisfied by directing the requestor to publicly

available information, the responder may do so.

b. Unless otherwise provided herein, all public records requests shall be forwarded to the RMO upon receipt.

c. Records Routinely Provided in Due Course of Business

Where specific records are routinely provided in the due course of business, departments may request ongoing authorization to release such records without forwarding such requests to the RMO. The RMO shall consult with Legal Counsel prior to such authorization being granted.

d. Elected Official records. Where an elected official chooses to make their own determination, such requests shall be forwarded to the elected official and no review by the RMO shall be completed.

2. Public Records Production Procedures

a. Intake

Persons requesting Public Records shall submit a public records request through one of the following described methods. Upon receipt of such a request, the County shall be required to comply with response timelines specified in ORS 192.324 and ORS 192.329.

i. Complete an online request on the County website Public Records Request Form.
ii. Mail a completed Public Records Request form to the Board of Commissioners' Office:
500 NW 6th St
Dept. 6
Grants Pass, OR 97526
iii. Submit a completed Public Records Request form in person to one of the following County Offices or Departments: Sheriff's Office, Clerk's Office, Assessor's Office, Surveyor's Office, Planning Department, Building and Community Development Department, or Community Justice Department. Public records requests submitted to an individual department or office should be for its respective records only, and staff may redirect a requestor if the department or office does not keep the requested records. All other requests for records shall be submitted to the Board of Commissioners Office.

b. Processing

After the County receives a completed Public Records request form, the department or office in possession of the record shall either obtain all records believed to complete the request or shall contact the RMO with an estimate of the number of hours that will be required to satisfy the request. If the estimated time necessary shall result in a fee exceeding $25.00, the RMO shall contact the requestor with a fee estimate and confirm proceeding with the request or allow the requestor to modify or withdraw the request. The custodian of the record shall then forward the following information to the County RMO:

i. A completed Public Records Request form; and

ii. A copy of the records requested, or access to electronic records; or

iii. A statement of the amount of time spent gathering the records to send to the RMO or an estimate of the amount of staff time and staff grade needed to compile the records.

iv. RMO will then review the records and establish a reasonably calculated fee to reimburse the County for the actual cost of making the records available. The County may require a 100% deposit from the requester. Any fees requested must be paid within 60 days in accordance with ORS192.329(3)(b).

c. Review and Redaction

i. The RMO is authorized to redact or separate records in accordance with law.

ii. The RMO may seek assistance from Legal Counsel in determining release or redaction.

iii. The Board of County Commissioners shall have the sole authority to waive attorney-client privilege or confidentiality on behalf of the County.

d. Disclosure

The RMO will then make a copy of the Public Records to be released and provide copies of the records to the requester or contact the requester for pickup. In lieu of mailing or providing the records, the RMO may allow the requester to view the records in a designated meeting space at the Josephine County Courthouse.

e. Fees and Charges

There will be no cost for hard copies if the request is entirely processed and provided electronically. There will be no cost for labor if the request can be met within 15 minutes; all other requests will be charged at rates established pursuant to the Uniform Fee Procedure and other applicable law. Charges shall be based upon the rate set for the personnel who compile, review, copy or in any way process records in response to a request. The County shall not charge more than the rate of the lowest-compensated employee capable of completing the work. If a requester wishes to review the materials with no copies made, a charge for requisite staff time and document compilation and production may be assessed. If the estimated charges exceed $25, the County may require a 100% deposit. When a fee exceeds $25, the County shall obtain written confirmation of the requester's assent to the fee prior to processing the request.

f. Fee Waivers or Reductions

When the County determines that a record's disclosure is in the public interest, the RMO may waive or substantially reduce fees to produce the records in accordance with law.

G. Special Situations

1. If the public record is maintained in a machine readable or electronic form, the County shall provide a copy of the public record in the form requested, if available. If the public record is not available in the form requested, the County shall make the public record available in the form in which the County maintains the public record.
2. Records may be subject to public disclosure upon request, even if their retention was not required by law or if the record was subject to a lawful retention schedule permitting destruction of the record prior to the date of the request, if the record was still in the possession of the public body at the time of the request. The statutory definition of a public record requiring disclosure applies more broadly than the statutory definition of a record subject to retention.
3. The County is not required to create public records that would not otherwise exist.

BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY STATE OF OREGON

In the Matter of Affirming Compliance with State and Federal Law and Requesting That the State of Oregon Address Counties' Federal Funding and False Claims Act Exposure	)))))	Resolution No. 2026-xxx

DRAFT

WHEREAS, state laws restrict the extent to which every Oregon public body, including counties and sheriffs, may inquire into immigration status, share information with, provide facility access to, or otherwise assist federal immigration authorities, and no county may exempt itself from these restrictions; and

WHEREAS, the federal laws require compliance with the terms of federal grants, and the grants often expressly require adherence to federal laws, rules and Executive Orders; and

WHEREAS, counties are exposed on the other side as well: the Sanctuary Promise Act authorizes enforcement against public bodies that fail to follow it, so a county that cooperates with relevant federal laws too much risks liability under state law, and one that cooperates too little risks loss of federal funds and federal liability; and

WHEREAS, the Board values its partnership with the State, does not challenge the validity of these laws, and seeks dialogue and practical relief rather than confrontation;

NOW, THEREFORE, IT IS HEREBY RESOLVED, that Josephine County respectfully asks the Governor, the Attorney General, and the Legislative Assembly to: (a) consult with the Association of Oregon Counties, the Oregon State Sheriffs' Association, and affected counties, and weigh counties' federal funding and False Claims Act exposure, before enacting or expanding laws restricting cooperation with federal immigration enforcement; (b) Issue an Attorney General's Opinion and model disclosure language for federal grant certifications that address immigration-related cooperation or 8 U.S.C. §§ 1373 and 1644, and ensure that for funds passed through state agencies such certifications are made by the State as prime recipient rather than flowed down to counties; (c) enact legislation committing the State to defend and indemnify counties and their officers against False Claims Act claims arising from good-faith compliance with state law; (d) make any county whole for federal funds withheld or reduced because of that compliance; (e) seek written acknowledgment from federal grantors that Oregon counties' cooperation is constrained by state law; and (f) consider whether targeted amendments, such as permitting a public body to act where necessary to satisfy federal law or a lawful condition of federal funding, could reduce counties' exposure without abandoning the Legislature's policy objectives.

IT IS FURTHER RESOLVED that nothing in this Resolution is an admission that any prior certification was inaccurate, a declaration that the County is or is not a

"sanctuary jurisdiction" within the meaning of any federal order, list, or grant condition, or a challenge to the validity of any state or federal law. This Resolution takes effect upon adoption.

DATED THIS _____ day of October, 2026.

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

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Ron Smith, Chair

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Colene Martin, Vice Chair

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Gary Richardson, Commissioner